

Opinion of the Court

(brought about by the trial testimony) to require it, once again, to canvass the record. That is to say, an interlocutory appeal concerning this kind of issue in a sense makes unwise use of appellate courts' time, by forcing them to decide in the context of a less developed record, an issue very similar to one they may well decide anyway later, on a record that will permit a better decision. See 15A Wright & Miller §3914.10, at 664 (“[I]f [immunity appeals] could be limited to . . . issues of law . . . there would be less risk that the court of appeals would need to waste time in duplicating investigations of the same facts on successive appeals”).

The upshot is that, compared with *Mitchell*, considerations of delay, comparative expertise of trial and appellate courts, and wise use of appellate resources argue in favor of limiting interlocutory appeals of “qualified immunity” matters to cases presenting more abstract issues of law. Considering these “competing considerations,” we are persuaded that “[i]mmunity appeals . . . interfere less with the final judgment rule if they [are] limited to cases presenting neat abstract issues of law.” 15A Wright & Miller §3914.10, at 664; cf. *Puerto Rico Aqueduct*, 506 U. S., at 147 (noting the argument for a distinction between fact-based and law-based appeals, but seeing no “basis for drawing” it with respect to the particular kind of order at hand); 15A Wright & Miller §3914.10, at 85 (1995 Supp.).

We recognize that, whether a district court’s denial of summary judgment amounts to (a) a determination about pre-existing “clearly established” law, or (b) a determination about “genuine” issues of fact for trial, it still forces public officials to trial. See Brief for Petitioners 11–16. And, to that extent, it threatens to undercut the very policy (protecting public officials from lawsuits) that (the *Mitchell* Court held) militates in favor of immediate appeals. Nonetheless, the countervailing considerations that we have mentioned (precedent, fidelity to statute, and underlying policies) are